

Amendment No. 1 to SB0030

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 30

House Bill No. 55*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-17-309(b), is amended by adding the following as new subdivisions:

(5) Litters or trespasses upon any real or personal property of another person with the intent to unlawfully intimidate another from the free exercise or enjoyment of any right or privilege secured by the constitution or laws of the state of Tennessee; or

(6) Litters or trespasses upon any real or personal property of another person with the intent to unlawfully intimidate another because that other exercised any right or privilege secured by the constitution or laws of the United States or the constitution or laws of the state of Tennessee.

SECTION 2. Tennessee Code Annotated, Section 39-17-309, is amended by adding the following as a new subsection:

(f) As used in this section, "litters" means places, drops, or throws garbage, refuse, rubbish, unsolicited flyers, or other waste material on any public or private property without permission.

SECTION 3. Tennessee Code Annotated, Section 39-17-309(d), is amended by deleting the subsection and substituting:

(1) A violation of subdivisions (b)(1)–(4) is a Class D felony.

(2) A violation of subdivision (b)(5) or (b)(6) is a Class A misdemeanor.

(3) A violation of subsection (c) is a Class A misdemeanor.

SECTION 4. Tennessee Code Annotated, Title 39, Chapter 16, Part 6, is amended by adding the following new section:

(a) A law enforcement officer may ask a person to identify themselves if the officer has reasonable suspicion to believe that the person has violated or is violating a state law or local ordinance.

(b) Pursuant to the law enforcement officer's reasonable suspicion, the officer may ask the suspect to provide the suspect's name verbally or to otherwise provide the suspect's name by other means.

(c) A person commits an offense who intentionally gives a false or fictitious name to a law enforcement officer who has lawfully detained or arrested the person.

(d) A violation of subsection (c) is a Class C misdemeanor.

(e) A person's failure or inability to produce a physical form of identification or driver license to a police or peace officer requesting identification is not a violation of subsection (c).

SECTION 5. Tennessee Code Annotated, Title 39, Chapter 16, Part 6, is amended by adding the following new section:

(a) A person commits an offense who intentionally approaches, within twenty-five feet (25'), a law enforcement officer after the officer has ordered the person to stop approaching or to retreat and the officer is lawfully engaged in the execution of official duties involving:

(1) A lawful traffic stop;

(2) An active investigation of the scene of an alleged crime; or

(3) An ongoing and immediate threat to public safety.

(b) It is an affirmative defense to a violation of subsection (a) that the lawful order was not received or understood by the person and was not capable of being received or understood under the conditions and circumstances that existed at the time of the issuance of the order.

(c) A violation of subsection (a) is a Class B misdemeanor.

SECTION 6. Tennessee Code Annotated, Title 55, Chapter 8, Part 2, is amended by adding the following new section:

(a) A person commits an offense who, on the streets of any municipality, roads of any county, or the highways of this state, transports another in the cargo area of a box truck.

(b) A violation of subsection (a) is a Class B misdemeanor.

(c) As used in this section, "box truck" means a moving van or other vehicle that is manufactured with an enclosed cargo area that is connected to the passenger area with a one-piece design or attached to the chassis with two-piece construction, and the cargo area:

(1) Is designed primarily for the transportation of property; and

(2) Does not have seats or safety belts designed to accommodate a passenger.

SECTION 7. Tennessee Code Annotated, Title 39, Chapter 17, Part 3, is amended by adding the following new section:

(a) It is an offense to place a sign, signal, or marking over a highway or to affix or attach a sign, signal, or marking to a bridge, overpass, or tunnel without written authorization from the entity that maintains the highway, bridge, overpass, or tunnel.

(b) A violation of subsection (a) is a Class B misdemeanor.

SECTION 8. Tennessee Code Annotated, Section 40-7-103(a), is amended by adding the following as a new subdivision:

(12) When an officer has probable cause to believe a person has committed a misdemeanor, regardless of whether the offense was committed in the officer's presence.

SECTION 9. Tennessee Code Annotated, Section 40-7-118(c), is amended by adding the following as a new subdivision:

(3) The peace officer has probable cause to believe the person committed an offense, regardless of whether the offense was committed in the peace officer's presence.

SECTION 10. Tennessee Code Annotated, Section 40-7-118(k), is amended by deleting the language "cannot be issued because of one (1) of the seven (7) reasons enumerated in subsection (d)" wherever it appears and substituting "cannot or should not be issued pursuant to subsection (c) or (d)".

SECTION 11. This act takes effect July 1, 2025, the public welfare requiring it.